

PROBATE COURT OF FRANKLIN COUNTY, OHIO
JEFFREY D. MACKEY, JUDGE

IN RE TRUST OF _____, A MINOR

CASE NO: _____

TRUST UNDER R.C. 2111.182

Pursuant to the provisions of R.C. Chapter 2111 and the inherent power of the court, Judge Jeffrey D. Mackey (the "Probate Judge") of the Probate Division of the Franklin County Court of Common Pleas (the "Court"), hereby **ORDERS** this Trust for the sole benefit of the minor named _____, whose date of birth is _____.

With the approval of the parent(s) or the guardian(s) of the minor, _____ is hereby appointed as Trustee of this Trust. Pursuant to an order of the Court, the Trustee is depositing into this Trust an amount received under R.C. 2111.182.

The Trustee shall hold and administer the assets of this Trust in accordance with the following terms and provisions:

ARTICLE ONE

1.1. The Trust shall be administered until the earlier of the beneficiary attaining twenty-five years of age or the beneficiary's death.

1.2. Until the termination of the Trust pursuant to Article Three, the Trustee shall apply the net income and principal of the Trust as follows:

1.2.1. Upon approval from the Probate Judge and in the Probate Judge's discretion, the Trustee may pay to the beneficiary or apply for their benefit the net income or principal of the Trust, pursuant to an order of the Court. The determination of the Probate Judge with respect to payments from the beneficiary's Trust shall be conclusive and binding on all interested persons.

1.2.2. The Trustee shall not be liable to the beneficiary or other interested parties for distributions made from Trust income or principal pursuant to an order of the Court.

1.2.3. The Trustee shall not be required to see the application of any funds paid or applied pursuant to an order of the Court, and the receipt of the payee shall be the full acquittance of the Trustee. The decision of the Probate Judge as to the method of payment shall be conclusive and binding on all interested parties.

1.3. The beneficiary, if an adult, or otherwise the beneficiary's guardian, shall receive or waive notice of all proceedings pertaining to the Trust, including but not limited to applications to expend funds and accountings.

ARTICLE TWO

2.1. If for any reason, any interest in or right to receive payments under the Trust would at any time become payable to or pass to or for the benefit of any persons other than the beneficiary, including because of any alienation or attempted alienation by the beneficiary, that interest or right shall cease, terminate, and be forfeit for the period during which it would otherwise have been alienated.

2.2. Notwithstanding any forfeiture of the beneficiary, the Trustee may continue to pay to the beneficiary or apply for their benefit such sums as approved pursuant to Paragraph 1.1. Any forfeitures remaining at the time the Trust terminates shall cease and terminate, and the Trust Estate shall be distributed pursuant to the provisions of Article Three.

ARTICLE THREE

3.1. When the beneficiary attains twenty-five years of age, the Trustee shall distribute the remaining accumulated income and principal in the Trust to the beneficiary.

3.2. If the beneficiary dies prior to attaining twenty-five years of age, then the Trustee shall distribute the remaining accumulated income and principal of the Trust to the beneficiary's estate.

ARTICLE FOUR

4.1. The Trustee shall have such power, authority, and discretion as may be granted by law or pursuant to an order of the Court.

ARTICLE FIVE

5.1. The Trustee shall be compensated as stipulated in its regular schedule of compensation on file with the Court or as provided by any Court rules which are in effect and applicable at the time the compensation becomes payable.

ARTICLE SIX

6.1. Any successor to the office of judge of the Court shall success to all of the power, authority, and discretion of the Probate Judge.

6.2. Any corporate successor to the Trust business of the Trustee shall become the successor Trustee without the necessity of any conveyance, transfer, or order of the Court, but

shall provide written notice of its succession to the Court within thirty days.

6.3. Any Trustee may resign upon providing the Probate Judge with sixty days' prior written notice or upon written approval of the Court. The Probate Judge may remove any Trustee. Upon the resignation or removal of the Trustee, the Probate Judge may appoint a successor Trustee. Upon delivery to the successor Trustee of all assets in the Trustee's possession and approval by the Probate Judge of a final accounting of the Trustee's actions, the resigning or removed Trustee shall be completely discharged of all fiduciary liabilities. Upon acceptance, the successor Trustee shall be vested with all of the duties, power, authority, and discretion granted to the predecessor Trustee.

ARTICLE SEVEN

7.1. If the Trustee determines at any time that it would be impractical to continue the administration of the Trust, the Trustee may, upon approval of the Probate Judge, terminate the Trust and distribute its assets to or for the benefit of the beneficiary in accordance with an order of the Court.

ARTICLE EIGHT

8.1. The Trustee shall file accounts annually and in accordance with Court rules, serving copies upon the beneficiary, if an adult, or otherwise the beneficiary's guardian. Unless directed otherwise by the Probate Judge, reports as set forth in R.C. 5808.13(C) shall not be required.

ARTICLE NINE

9.1. The Trustee accepts this Trust and agrees to carry out all Trust provisions to be done and performed by the Trustee.

ARTICLE TEN

10.1. The Probate Judge reserves the right to amend or modify this Trust, in whole or in part, and to order partial or final distributions to or for the benefit of the beneficiary.

[ARTICLE ELEVEN AND SIGNAUTRES FOLLOW ON PAGE 4]

ARTICLE ELEVEN

11.1. This Trust shall be deemed to be an Ohio Trust and shall be governed and interpreted in all respect by the laws of the State of Ohio.

IT IS SO ORDERED.

Signature Page Attached
Jeffrey D. Mackey, Judge

Requested and Approved by:

Signature

Signature

Printed Name
☐ Parent or ☐ Guardian of Minor

Printed Name
☐ Parent or ☐ Guardian of Minor

Accepted by Trustee:

Signature

Printed Name

ACKNOWLEDGEMENT BY ATTORNEY:

This instrument conforms with the prototype R.C. 2111.182 Trust filed under Franklin County Probate Court Case No. 424500 as of the date of this order.

Attorney

Supreme Court Registration Number